Whether spiritual relationship is an impediment to marriage?

Objection 1: It would seem that spiritual relationship is not an impediment to marriage. For nothing is an impediment to marriage save what is contrary to a marriage good. Now spiritual relationship is not contrary to a marriage good. Therefore it is not an impediment to marriage.

Objection 2: Further, a perpetual impediment to marriage cannot stand together with marriage. But spiritual relationship sometimes stands together with marriage, as stated in the text (Sent. iv, D, 42), as when a man in a case of necessity baptizes his own child, for then he contracts a spiritual relationship with his wife, and yet the marriage is not dissolved. Therefore spiritual relationship is not an impediment to marriage.

Objection 3: Further, union of the spirit does not pass to the flesh. But marriage is a union of the flesh. Therefore since spiritual relationship is a union of the spirit, it cannot become an impediment to marriage.

Objection 4: Further, contraries have not the same effects. Now spiritual relationship is apparently contrary to disparity of worship, since spiritual relationship is a kinship resulting from the giving of a sacrament or the intention of so doing [*See next Article, ad 3]: whereas disparity of worship consists in the lack of a sacrament, as stated above (Q[50], A[1]). Since then disparity of worship is an impediment to matrimony, it would seem that spiritual relationship has not this effect.

On the contrary, The holier the bond, the more is it to be safeguarded. Now a spiritual bond is holier than a bodily tie: and since the tie of bodily kinship is an impediment to marriage, it follows that spiritual relationship should also be an impediment.

Further, in marriage the union of souls ranks higher than union of bodies, for it precedes it. Therefore with much more reason can a spiritual relationship hinder marriage than bodily relationship does.

I answer that, Just as by carnal procreation man receives natural being, so by the sacraments he receives the spiritual being of grace. Wherefore just as the tie that is contracted by carnal procreation is natural to man, inasmuch as he is a natural being, so the tie that is contracted from the reception of the sacraments is after a fashion natural to man, inasmuch as he is a member of the Church. Therefore as carnal relationship hinders marriage, even so does spiritual relationship by command of the Church. We must however draw a distinction in reference to spiritual relationship, since either it precedes or follows marriage. If it precedes, it hinders the contracting of marriage and voids the contract. If it follows, it does not dissolve the marriage bond: but we must draw a further distinction in reference to the marriage act. For either the spiritual relationship is contracted in a case of necessity, as when a father baptizes his child who is at the point of death---and then it is not an obstacle to the marriage act on either side---or it is contracted without any necessity and through ignorance, in which case if the person whose action has occasioned the relationship acted with due caution, it is the same with him as in the former case---or it is contracted purposely and without any necessity, and then the person whose action has occasioned the relationship, loses the right to ask for the debt; but is bound to pay if asked, because the fault of the one party should not be prejudicial to the other.

Reply to Objection 1: Although spiritual relationship does not hinder any of the chief marriage goods, it hinders one of the secondary goods, namely the extension of friendship, because spiritual

relationship is by itself a sufficient reason for friendship: wherefore intimacy and friendship with other persons need to be sought by means of marriage.

Reply to Objection 2: Marriage is a lasting bond, wherefore no supervening impediment can sever it. Hence it happens sometimes that marriage and an impediment to marriage stand together, but not if the impediment precedes.

Reply to Objection 3: In marriage there is not only a bodily but also a spiritual union: and consequently kinship of spirit proves an impediment thereto, without spiritual kinship having to pass into a bodily relationship.

Reply to Objection 4: There is nothing unreasonable in two things that are contrary to one another being contrary to the same thing, as great and small are contrary to equal. Thus disparity of worship and spiritual relationship are opposed to marriage, because in one the distance is greater, and in the other less, than required by marriage. Hence there is an impediment to marriage in either case.

Whether spiritual relationship is contracted by baptism only?

Objection 1: It would seem that spiritual relationship is contracted by Baptism only. For as bodily kinship is to bodily birth, so is spiritual kinship to spiritual birth. Now Baptism alone is called spiritual birth. Therefore spiritual kinship is contracted by Baptism only, even as only by carnal birth is carnal kinship contracted.

Objection 2: Further, a character is imprinted in order as in Confirmation. But spiritual relationship does not result from receiving orders. Therefore it does not result from Confirmation but only from Baptism.

Objection 3: Further, sacraments are more excellent than sacramentals. Now spiritual relationship does not result from certain sacraments, for instance from Extreme Unction. Much less therefore does it result from catechizing, as some maintain.

Objection 4: Further, many other sacramentals are attached to Baptism besides catechizing. Therefore spiritual relationship is not contracted from catechism any more than from the others.

Objection 5: Further, prayer is no less efficacious than instruction of catechism for advancement in good. But spiritual relationship does not result from prayer. Therefore it does not result from catechism.

Objection 6: Further, the instruction given to the baptized by preaching to them avails no less than preaching to those who are not yet baptized. But no spiritual relationship results from preaching. Neither therefore does it result from catechism.

Objection 7: On the other hand, It is written (1 Cor. 4:15): "In Christ Jesus by the gospel I have begotten you." Now spiritual birth causes spiritual relationship. Therefore spiritual relationship results from the preaching of the gospel and instruction, and not only from Baptism.

Objection 8: Further, as original sin is taken away by Baptism, so is actual sin taken away by Penance. Therefore just as Baptism causes spiritual relationship, so also does Penance.

Objection 9: Further, "father" denotes relationship. Now a man is called another's spiritual father in respect of Penance, teaching, pastoral care and many other like things. Therefore spiritual relationship is contracted from many other sources besides Baptism and Confirmation.

I answer that, There are three opinions on this question. Some say that as spiritual regeneration is bestowed by the sevenfold grace of the Holy Ghost, it is caused by means of seven things, beginning with the first taste of blessed salt and ending with Confirmation given by the bishop: and they say that spiritual relationship is contracted by each of these seven things. But this does not seem reasonable, for carnal relationship is not contracted except by a perfect act of generation. Wherefore affinity is not contracted except there be mingling of seeds, from which it is possible for carnal generation to follow. Now spiritual generation is not perfected except by a sacrament: wherefore it does not seem fitting for spiritual relationship to be contracted otherwise than through a sacrament. Hence others say that spiritual relationship is only contracted through three sacraments, namely catechism, Baptism and Confirmation, but these do not apparently know the meaning of what they say, since catechism is not a sacrament but a sacramental. Wherefore others say that it is contracted through two sacraments only, namely Confirmation and Baptism, and this is the more common opinion. Some however of these say that catechism is a weak impediment, since it hinders the contracting of marriage but does not void the contract.

Reply to Objection 1: Carnal birth is twofold. The first is in the womb, wherein that which is born is a weakling and cannot come forth without danger: and to this birth regeneration by Baptism is likened; wherein a man is regenerated as though yet needing to be fostered in the womb of the Church. The second is birth from out of the womb, when that which was born in the womb is so far strengthened that it can without danger face the outer world which has a natural corruptive tendency. To this is likened Confirmation, whereby man being strengthened goes forth abroad to confess the name of Christ. Hence spiritual relationship is fittingly contracted through both these sacraments.

Reply to Objection 2: The effect of the sacrament of order is not regeneration but the bestowal of power, for which reason it is not conferred on women, and consequently no impediment to marriage can arise therefrom. Hence this kind of relationship does not count.

Reply to Objection 3: In catechism one makes a profession of future Baptism, just as in betrothal one enters an engagement of future marriage. Wherefore just as in betrothal a certain kind of propinquity is contracted, so is there in catechism, whereby marriage is rendered at least unlawful, as some say; but not in the other sacraments.

Reply to Objection 4: There is not made a profession of faith in the other sacramentals of Baptism, as in catechism: wherefore the comparison fails.

The same answer applies to the Fifth and Sixth Objections.

Reply to Objection 7: The Apostle had instructed them in the faith by a kind of catechism; and consequently his instruction was directed to their spiritual birth.

Reply to Objection 8: Properly speaking a spiritual relationship is not contracted through the sacrament of Penance. Wherefore a priest's son can marry a woman whose confession the priest has heard, else in the whole parish he could not find a woman whom he could marry. Nor does it matter that by Penance actual sin is taken away, for this is not a kind of birth, but a kind of healing. Nevertheless Penance occasions a kind of bond between the woman penitent and the priest, that has a resemblance to spiritual relationship, so that if he have carnal intercourse with her, he sins as grievously as if she were his spiritual daughter. The reason of this is that the relations between priest and penitent are most intimate, and consequently in order to remove the occasion of sin this prohibition [*Can. Omnes quos, and seqq., Caus. xxx] was made.

Reply to Objection 9: A spiritual father is so called from his likeness to a carnal father. Now as the Philosopher says (Ethic. viii, 2) a carnal father gives his child three things, being nourishment and instruction: and consequently a person's spiritual father is so called from one of these three things. Nevertheless he has not, through being his spiritual father, a spiritual relationship with him, unless he is like a (carnal) father as to generation which is the way to being. This solution may also be applied to the foregoing Eighth Objection.

Whether spiritual relationship is contracted between the person baptized and the person who raises him from the sacred font?

Objection 1: It would seem that spiritual relationship is not contracted between the person baptized and the person who raises him from the sacred font. For in carnal generation carnal relationship is contracted only on the part of the person of whose seed the child is born; and not on the part of the person who receives the child after birth. Therefore neither is spiritual relationship contracted between the receiver and the received at the sacred font.

Objection 2: Further, he who raises a person from the sacred font is called {anadochos} by Dionysius (Eccl. Hier. ii): and it is part of his office to instruct the child. But instruction is not a sufficient cause of spiritual relationship, as stated above (A[2]). Therefore no relationship is contracted between him and the person whom he raises from the sacred font.

Objection 3: Further, it may happen that someone raises a person from the sacred font before he himself is baptized. Now spiritual relationship is not contracted in such a case, since one who is not baptized is not capable of spirituality. Therefore raising a person from the sacred font is not sufficient to contract a spiritual relationship.

On the contrary, There is the definition of spiritual relationship quoted above (A[1]), as also the authorities mentioned in the text (Sent. iv, D, 42).

I answer that, Just as in carnal generation a person is born of a father and mother, so in spiritual generation a person is born again a son of God as Father, and of the Church as Mother. Now while he who confers the sacrament stands in the place of God, whose instrument and minister he is, he who raises a baptized person from the sacred font, or holds the candidate for Confirmation, stands in the place of the Church. Therefore spiritual relationship is contracted with both.

Reply to Objection 1: Not only the father, of whose seed the child is born, is related carnally to the child, but also the mother who provides the matter, and in whose womb the child is begotten. So too the godparent who in place of the Church offers and raises the candidate for Baptism and holds the candidate for Confirmation contracts spiritual relationship.

Reply to Objection 2: He contracts spiritual relationship not by reason of the instruction it is his duty to give, but on account of the spiritual birth in which he co-operates.

Reply to Objection 3: A person who is not baptized cannot raise anyone from the sacred font, since he is not a member of the Church whom the godparent in Baptism represents: although he can baptize, because he is a creature of God Whom the baptizer represents. And yet he cannot contract a spiritual relationship, since he is void of spiritual life to which man is first born by receiving Baptism.

Whether spiritual relationship passes from husband to wife?

Objection 1: It would seem that spiritual relationship does not pass from husband to wife. For spiritual and bodily union are disparate and differ generically. Therefore carnal union which is between husband and wife cannot be the means of contracting a spiritual relationship.

Objection 2: Further, the godfather and godmother have more in common in the spiritual birth that is the cause of spiritual relationship, than a husband, who is godfather, has with his wife. Now godfather and godmother do not hereby contract spiritual relationship. Therefore neither does a wife contract a spiritual relationship through her husband being godfather to someone.

Objection 3: Further, it may happen that the husband is baptized, and his wife not, for instance when he is converted from unbelief without his wife being converted. Now spiritual relationship cannot be contracted by one who is not baptized. Therefore it does not always pass from husband to wife.

Objection 4: Further, husband and wife together can raise a person from the sacred font, since no law forbids it. If therefore spiritual relationship passed from husband to wife, it would follow that each of them is twice godfather or godmother of the same individual: which is absurd.

On the contrary, Spiritual goods are more communicable than bodily goods. But the bodily consanguinity of the husband passes to his wife by affinity. Much more therefore does spiritual relationship.

I answer that, A may become co-parent with B in two ways. First, by the act of another (B), who baptizes A's child, or raises him in Baptism. In this way spiritual relationship does not pass from husband to wife, unless perchance it be his wife's child, for then she contracts spiritual relationship directly, even as her husband. Secondly, by his own act, for instance when he raises B's child from the sacred font, and thus spiritual relationship passes to the wife if he has already had carnal knowledge of her, but not if the marriage be not yet consummated, since they are not as yet made one flesh: and this is by way of a kind of affinity; wherefore it would seem on the same grounds to pass to a woman of whom he has carnal knowledge, though she be not his wife. Hence the verse: "I may not marry my own child's godmother, nor the mother of my godchild: but I may marry the godmother of my wife's child."

Reply to Objection 1: From the fact that corporal and spiritual union differ generically we may conclude that the one is not the other, but not that the one cannot cause the other, since things of different genera sometimes cause one another either directly or indirectly.

Reply to Objection 2: The godfather and godmother of the same person are not united in that person's spiritual birth save accidentally, since one of them would be self-sufficient for the purpose. Hence it does not follow from this that any spiritual relationship results between them whereby they are hindered from marrying one another. Hence the verse:

"Of two co-parents one is always spiritual, the other carnal: this rule is infallible."

On the other hand, marriage by itself makes husband and wife one flesh: wherefore the comparison fails.

Reply to Objection 3: If the wife be not baptized, the spiritual relationship will not reach her, because she is not a fit subject, and not because spiritual relationship cannot pass from husband to wife through marriage.

Reply to Objection 4: Since no spiritual relationship results between godfather and godmother, nothing prevents husband and wife from raising together someone from the sacred font. Nor is it

absurd that the wife become twice godmother of the same person from different causes, just as it is possible for her to be connected in carnal relationship both by affinity and consanguinity to the same person.

Whether spiritual relationship passes to the godfather's carnal children?

Objection 1: It would seem that spiritual relationship does not pass to the godfather's carnal children. For no degrees are assigned to spiritual relationship. Yet there would be degrees if it passed from father to son, since the person begotten involves a change of degree, as stated above (Q[55], A[5]). Therefore it does not pass to the godfather's carnal sons.

Objection 2: Further, father and son are related in the same degree as brother and brother. If therefore spiritual relationship passes from father to son, it will equally pass from brother to brother: and this is false.

On the contrary, This is proved by authority quoted in the text (Sent. iv, D, 42).

I answer that, A son is something of his father and not conversely (Ethic. viii, 12): wherefore spiritual relationship passes from father to his carnal son and not conversely. Thus it is clear that there are three spiritual relationships: one called spiritual fatherhood between godfather and godchild; another called co-paternity between the godparent and carnal parent of the same person; and the third is called spiritual brotherhood, between godchild and the carnal children of the same parent. Each of these hinders the contracting of marriage and voids the contract.

Reply to Objection 1: The addition of a person by carnal generation entails a degree with regard to a person connected by the same kind of relationship, but not with regard to one connected by another kind of relationship. Thus a son is connected with his father's wife in the same degree as his father, but by another kind of relationship. Now spiritual relationship differs in kind from carnal. Wherefore a godson is not related to his godfather's carnal son in the same degree as the latter's father is related to him, through whom the spiritual relationship is contracted. Consequently it does not follow that spiritual relationship admits of degrees.

Reply to Objection 2: A man is not part of his brother as a son is of his father. But a wife is part of her husband, since she is made one with him in body. Consequently the relationship does not pass from brother to brother, whether the brother be born before or after spiritual brotherhood.

OF LEGAL RELATIONSHIP, WHICH IS BY ADOPTION (THREE ARTICLES)

We must now consider legal relationship which is by adoption. Under this head there are three points of inquiry:

(1) What is adoption?

(2) Whether one contracts through it a tie that is an impediment to marriage?

(3) Between which persons is this tie contracted.

Whether adoption is rightly defined?

Objection 1: It would seem that adoption is not rightly defined: "Adoption is the act by which a person lawfully takes for his child or grandchild and so on one who does not belong to him." For the child should be subject to its father. Now, sometimes the person adopted does not come under the power of the adopter. Therefore adoption is not always the taking of someone as a child.

Objection 2: Further, "Parents should lay up for their children" (2 Cor. 12:14). But the adoptive father does not always necessarily lay up for his adopted child, since sometimes the adopted does not inherit the goods of the adopter. Therefore adoption is not the taking of someone as a child.

Objection 3: Further, adoption, whereby someone is taken as a child, is likened to natural procreation whereby a child is begotten naturally. Therefore whoever is competent to beget a child naturally is competent to adopt. But this is untrue, since neither one who is not his own master, nor one who is not twenty-five years of age, nor a woman can adopt, and yet they can beget a child naturally. Therefore, properly speaking, adoption is not the taking of someone as a child.

Objection 4: Further, to take as one's child one who is not one's own seems necessary in order to supply the lack of children begotten naturally. Now one who is unable to beget, through being a eunuch or impotent, suffers especially from the absence of children of his own begetting. Therefore he is especially competent to adopt someone as his child. But he is not competent to adopt. Therefore adoption is not the taking of someone as one's child.

Objection 5: Further, in spiritual relationship, where someone is taken as a child without carnal procreation, it is of no consequence whether an older person become the father of a younger, or "vice versa," since a youth can baptize an old man and "vice versa." Therefore, if by adoption a person is taken as a child without being carnally begotten, it would make no difference whether an older person adopted a younger, or a younger an older person; which is not true. Therefore the same conclusion follows.

Objection 6: Further, there is no difference of degree between adopted and adopter. Therefore whoever is adopted, is adopted as a child; and consequently it is not right to say that one may be adopted as a grandchild.

Objection 7: Further, adoption is a result of love, wherefore God is said to have adopted us as children through charity. Now we should have greater charity towards those who are connected with us than towards strangers. Therefore adoption should be not of a stranger but of someone connected with us.

I answer that, Art imitates nature and supplies the defect of nature where nature is deficient. Hence just as a man begets by natural procreation, so by positive law which is the art of what is good and just, one person can take to himself another as a child in likeness to one that is his child by nature, in order to take the place of the children he has lost, this being the chief reason why adoption was introduced. And since taking implies a term "wherefrom," for which reason the taker is not the thing taken, it follows that the person taken as a child must be a stranger. Accordingly, just as natural procreation has a term "whereto," namely the form which is the end of generation, and a term "wherefrom," namely the contrary form, so legal generation has a term "whereto," namely a child or grandchild, and a term "wherefrom," namely, a stranger. Consequently the above definition includes the genus of adoption, for it is described as a "lawful taking," and the term "wherefrom," since it is said to be the taking of "a stranger," and the term "whereto," because it says, "as a child or grandchild ."

Reply to Objection 1: The sonship of adoption is an imitation of natural sonship. Wherefore there are two species of adoption, one which imitates natural sonship perfectly, and this is called

"arrogatio," whereby the person adopted is placed under the power of the adopter; and one who is thus adopted inherits from his adopted father if the latter die intestate, nor can his father legally deprive him of a fourth part of his inheritance. But no one can adopt in this way except one who is his own master, one namely who has no father or, if he has, is of age. There can be no adoption of this kind without the authority of the sovereign. The other kind of adoption imitates natural sonship imperfectly, and is called "simple adoption," and by this the adopted does not come under the power of the adopter: so that it is a disposition to perfect adoption, rather than perfect adoption itself. In this way even one who is not his own master can adopt, without the consent of the sovereign and with the authority of a magistrate: and one who is thus adopted does not inherit the estate of the adopter, nor is the latter bound to bequeath to him any of his goods in his will, unless he will.

This suffices for the Reply to the Second Objection.

Reply to Objection 3: Natural procreation is directed to the production of the species; wherefore anyone in whom the specific nature is not hindered is competent to be able to beget naturally. But adoption is directed to hereditary succession, wherefore those alone are competent to adopt who have the power to dispose of their estate. Consequently one who is not his own master, or who is less than twenty-five years of age, or a woman, cannot adopt anyone, except by special permission of the sovereign.

Reply to Objection 4: An inheritance cannot pass to posterity through one who has a perpetual impediment from begetting: hence for this very reason it ought to pass to those who ought to succeed to him by right of relationship; and consequently he cannot adopt, as neither can he beget. Moreover greater is sorrow for children lost than for children one has never had. Wherefore those who are impeded from begetting need no solace for their lack of children as those who have had and have lost them, or could have had them but have them not by reason of some accidental impediment.

Reply to Objection 5: Spiritual relationship is contracted through a sacrament whereby the faithful are born again in Christ, in Whom there is no difference between male and female, bondman and free, youth and old age (Gal. 3:28; Col. 3:11). Wherefore anyone can indifferently become another's godfather. But adoption aims at hereditary succession and a certain subjection of the adopted to the adopter: and it is not fitting that older persons should be subjected to younger in the care of the household. Consequently a younger person cannot adopt an older; but according to law the adopted person must be so much younger than the adopter, that he might have been the child of his natural begetting.

Reply to Objection 6: One may lose one's grandchildren and so forth even as one may lose one's children. Wherefore since adoption was introduced as a solace for children lost, just as someone may be adopted in place of a child, so may someone be adopted in place of a grandchild and so on.

Reply to Objection 7: A relative ought to succeed by right of relationship; and therefore such a person is not competent to be chosen to succeed by adoption. And if a relative, who is not competent to inherit the estate, be adopted, he is adopted not as a relative, but as a stranger lacking the right of succeeding to the adopter's goods.

Whether a tie that is an impediment to marriage is contracted through adoption?

Objection 1: It would seem that there is not contracted through adoption a tie that is an impediment to marriage. For spiritual care is more excellent than corporeal care. But no tie of

relationship is contracted through one's being subjected to another's spiritual care: else all those who dwell in the parish would be related to the parish priest and would be unable to marry his son. Neither therefore can this result from adoption which places the adopted under the care of the adopter.

Objection 2: Further, no tie of relationship results from persons conferring a benefit on another. But adoption is nothing but the conferring of a benefit. Therefore no tie of relationship results from adoption.

Objection 3: Further, a natural father provides for his child chiefly in three things, as the Philosopher states (Ethic. viii, 11,12), namely by giving him being, nourishment and education; and hereditary succession is subsequent to these. Now no tie of relationship is contracted by one's providing for a person's nourishment and education, else a person would be related to his nourishers, tutors and masters, which is false. Therefore neither is any relationship contracted through adoption by which one inherits another's estate.

Objection 4: Further, the sacraments of the Church are not subject to human laws. Now marriage is a sacrament of the Church. Since then adoption was introduced by human law, it would seem that a tie contracted from adoption cannot be an impediment to marriage.

On the contrary, Relationship is an impediment to marriage. Now a kind of relationship results from adoption, namely legal relationship, as evidenced by its definition, for "legal relationship is a connection arising out of adoption." Therefore adoption results in a tie which is an impediment to marriage.

Further, the same is proved by the authorities quoted in the text (Sent. iv, D, 42).

I answer that, The Divine law especially forbids marriage between those persons who have to live together lest, as Rabbi Moses observes (Doc. Perp. iii, 49), if it were lawful for them to have carnal intercourse, there should be more room for concupiscence to the repression of which marriage is directed. And since the adopted child dwells in the house of his adopted father like one that is begotten naturally human laws forbid the contracting of marriage between the like, and this prohibition is approved by the Church. Hence it is that legal adoption is an impediment to marriage. This suffices for the Replies to the first three Objections, because none of those things entails such a cohabitation as might be an incentive to concupiscence. Therefore they do not cause a relationship that is an impediment to marriage.

Reply to Objection 4: The prohibition of a human law would not suffice to make an impediment to marriage, unless the authority of the Church intervenes by issuing the same prohibition.

Whether legal relationship is contracted only between the adopting father and the adopted child?

Objection 1: It would seem that a relationship of this kind is contracted only between the adopting father and the adopted child. For it would seem that it ought above all to be contracted between the adopting father and the natural mother of the adopted, as happens in spiritual relationship. Yet there is no legal relationship between them. Therefore it is not contracted between any other persons besides the adopter and adopted.

Objection 2: Further, the relationship that impedes marriage is a perpetual impediment. But there is not a perpetual impediment between the adopted son and the naturally begotten daughter of the adopted; because when the adoption terminates at the death of the adopter, or when the

adopted comes of age, the latter can marry her. Therefore he was not related to her in such a way as to prevent him from marrying her.

Objection 3: Further, spiritual relationship passes to no person incapable of being a god-parent; wherefore it does not pass to one who is not baptized. Now a woman cannot adopt, as stated above (A[1], ad 2). Therefore legal relationship does not pass from husband to wife.

Objection 4: Further, spiritual relationship is stronger than legal. But spiritual relationship does not pass to a grandchild. Neither, therefore, does legal relationship.

On the contrary, Legal relationship is more in agreement with carnal union or procreation than spiritual relationship is. But spiritual relationship passes to another person. Therefore legal relationship does so also.

Further, the same is proved by the authorities quoted in the text (Sent. iv, D, 42).

I answer that, Legal relationship is of three kinds. The first is in the descending order as it were, and is contracted between the adoptive father and the adopted child, the latter's child grandchild and so on; the second is between the adopted child and the naturally begotten child; the third is like a kind of affinity, and is between the adoptive father and the wife of the adopted son, or contrariwise between the adopted son and the wife of the adoptive father. Accordingly the first and third relationships are perpetual impediments to marriage: but the second is not, but only so long as the adopted person remains under the power of the adoptive father, wherefore when the father dies or when the child comes of age, they can be married.

Reply to Objection 1: By spiritual generation the son is not withdrawn from the father's power, as in the case of adoption, so that the godson remains the son of both at the same time, whereas the adopted son does not. Hence no relationship is contracted between the adoptive father and the natural mother or father, as was the case in spiritual relationship.

Reply to Objection 2: Legal relationship is an impediment to marriage on account of the parties dwelling together: hence when the need for dwelling together ceases, it is not unreasonable that the aforesaid tie cease, for instance when he ceases to be under the power of the same father. But the adoptive father and his wife always retain a certain authority over their adopted son and his wife, wherefore the tie between them remains.

Reply to Objection 3: Even a woman can adopt by permission of the sovereign, wherefore legal relationship passes also to her. Moreover the reason why spiritual relationship does not pass to a non-baptized person is not because such a person cannot be a god-parent but because he is not a fit subject of spirituality.

Reply to Objection 4: By spiritual relationship the son is not placed under the power and care of the godfather, as in legal relationship: because it is necessary that whatever is in the son's power pass under the power of the adoptive father. Wherefore if a father be adopted the children and grandchildren who are in the power of the person adopted are adopted also.

OF THE IMPEDIMENTS OF IMPOTENCE, SPELL, FRENZY OR MADNESS, INCEST AND DEFECTIVE AGE (FIVE ARTICLES)

We must now consider five impediments to marriage, namely the impediments of impotence, spell, frenzy or madness, incest, and defective age. Under this head there are five points of inquiry:

(1) Whether impotence is an impediment to marriage?
(2) Whether a spell is?
(3) Whether frenzy or madness is?
(4) Whether incest is?
(5) Whether defective age is?

Whether impotence is an impediment to marriage?

Objection 1: It would seem that impotence is not an impediment to marriage. For carnal copulation is not essential to marriage, since marriage is more perfect when both parties observe continency by vow. But impotence deprives marriage of nothing save carnal copulation. Therefore it is not a diriment impediment to the marriage contract.

Objection 2: Further, just as impotence prevents carnal copulation so does frigidity. But frigidity is not reckoned an impediment to marriage. Therefore neither should impotence be reckoned as such.

Objection 3: Further, all old people are frigid. Yet old people can marry. Therefore, etc.

Objection 4: Further, if the woman knows the man to be frigid when she marries him, the marriage is valid. Therefore frigidity, considered in itself, is not an impediment to marriage.

Objection 5: Further, calidity may prove a sufficient incentive to carnal copulation with one who is not a virgin, but not with one who is, because it happens to be so weak as to pass away quickly, and is therefore insufficient for the deflowering of a virgin. Or again it may move a man sufficiently in regard to a beautiful woman, but insufficiently in regard to an uncomely one. Therefore it would seem that frigidity, although it be an impediment in regard to one, is not an impediment absolutely.

Objection 6: Further, generally speaking woman is more frigid than man. But women are not debarred from marriage. Neither therefore should men be debarred on account of frigidity.

On the contrary, It is stated (Extra, De Frigidis et Malefic., cap. Quod Sedem): "Just as a boy who is incapable of marital intercourse is unfit to marry, so also those who are impotent are deemed most unfit for the marriage contract." Now persons affected with frigidity are the like. Therefore, etc.

Further, no one can bind himself to the impossible. Now in marriage man binds himself to carnal copulation; because it is for this purpose that he gives the other party power over his body. Therefore a frigid person, being incapable of carnal copulation, cannot marry.

I answer that, In marriage there is a contract whereby one is bound to pay the other the marital debt: wherefore just as in other contracts, the bond is unfitting if a person bind himself to what he cannot give or do, so the marriage contract is unfitting, if it be made by one who cannot pay the marital debt. This impediment is called by the general name of impotence as regards coition, and can arise either from an intrinsic and natural cause, or from an extrinsic and accidental cause, for instance spell, of which we shall speak later (A[2]). If it be due to a natural cause, this may happen in two ways. For either it is temporary, and can be remedied by medicine, or by the course of time, and then it does not void a marriage: or it is perpetual and then it voids marriage, so that the party who labors under this impediment remains for ever without hope of marriage, while the other may "marry to whom she will . . . in the Lord" (1 Cor. 7:39). In order to ascertain whether the impediment be perpetual or not, the Church has appointed a fixed time, namely three years, for putting the matter to a practical proof: and if after three years, during which both parties have honestly

endeavored to fulfil their marital intercourse, the marriage remain unconsummated, the Church adjudges the marriage to be dissolved. And yet the Church is sometimes mistaken in this, because three years are sometimes insufficient to prove impotence to be perpetual. Wherefore if the Church find that she has been mistaken, seeing that the subject of the impediment has completed carnal copulation with another or with the same person, she reinstates the former marriage and dissolves the subsequent one, although the latter has been contracted with her permission. [*"Nowadays it is seldom necessary to examine too closely into this matter, as all cases arising from it are treated as far as possible under the form of dispensations of non-consummated marriages." Cf. Catholic Encyclopedia, article Canonical Impediments.]

Reply to Objection 1: Although the act of carnal copulation is not essential to marriage, ability to fulfill the act is essential, because marriage gives each of the married parties power over the other's body in relation to marital intercourse.

Reply to Objection 2: Excessive calidity can scarcely be a perpetual impediment. If, however, it were to prove an impediment to marital intercourse for three years it would be adjudged to be perpetual. Nevertheless, since frigidity is a greater and more frequent impediment (for it not only hinders the mingling of seeds but also weakens the members which co-operate in the union of bodies), it is accounted an impediment rather than calidity, since all natural defects are reduced to frigidity.

Reply to Objection 3: Although old people have not sufficient calidity to procreate, they have sufficient to copulate. Wherefore they are allowed to marry, in so far as marriage is intended as a remedy, although it does not befit them as fulfilling an office of nature.

Reply to Objection 4: In all contracts it is agreed on all hands that anyone who is unable to satisfy an obligation is unfit to make a contract which requires the fulfilling of that obligation. Now this inability is of two kinds. First, because a person is unable to fulfill the obligation "de jure," and such inability renders the contract altogether void, whether the party with whom he contracts knows of this or not. Secondly, because he is unable to fulfill "de facto"; and then if the party with whom he contracts knows of this and, notwithstanding, enters the contract, this shows that the latter seeks some other end from the contract, and the contract stands. But if he does not know of it the contract is void. Consequently frigidity which causes such an impotence that a man cannot "de facto" pay the marriage debt, as also the condition of slavery, whereby a man cannot "de facto" give his service freely, are impediments to marriage, when the one married party does not know that the other is unable to pay the marriage debt. But an impediment whereby a person cannot pay the marriage debt "de jure," for instance consanguinity, voids the marriage contract, whether the other party knows of it or not. For this reason the Master holds (Sent. iv, D, 34) that these two impediments, frigidity and slavery, make it not altogether unlawful for their subjects to marry.

Reply to Objection 5: A man cannot have a perpetual natural impediment in regard to one person and not in regard to another. But if he cannot fulfill the carnal act with a virgin, while he can with one who is not a virgin, the hymeneal membrane may be broken by a medical instrument, and thus he may have connection with her. Nor would this be contrary to nature, for it would be done not for pleasure but for a remedy. Dislike for a woman is not a natural cause, but an accidental extrinsic cause: and therefore we must form the same judgment in its regard as about spells, of which we shall speak further on (A[2]).

Reply to Objection 6: The male is the agent in procreation, and the female is the patient, wherefore greater calidity is required in the male than in the female for the act of procreation. Hence